

SEP 13 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT E-11009

EXPIRATION DATE: September 30, 1993

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: A.E. Staley Manufacturing Company
Decatur, Illinois
2. PURPOSE AND LIMITATION: This exemption authorizes the shipment of a DOT Specification 105A500W tank car, containing a division 2.3, meeting all DOT requirements except that the tank and safety relief valve is overdue for the required periodic retest. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(c)(2) and 173.31(a)
5. BASIS. This exemption is based on A.E. Staley Manufacturing Company's application of April 22, 1993, submitted in accordance with 49 CFR 107.103 and the public proceedings thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Chlorine	2.3	UN 1017	N/A

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT specification 105A500W tank car, GATX 91513, which meets all DOT packaging requirements (49 CFR 100-199), except that the tank car is overdue for the required periodic tank and safety valve retest.
 - b. MARKING - Tank car GATX 91513 must be marked DOT-E 11009 in four inch letters on a contrasting background above the DOT Specification number.

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- c. TESTING - The safety relief valve and tank for tank car GATX 91513 must be retested prior to being reloaded.
- d. Shipment of tank car GATX 91513 is authorized from General American Transportation Company, East Chicago, Indiana, to PPG Industries, Natrium, West Virginia, a distance of approximately 500 miles via CSX transportation, and then from PPG Industries, Natrium, West Virginia, to Amherst Industries, Landisville, Pennsylvania, a distance of approximately 250 miles, utilizing the most direct route via CSX Transportation and Consolidated Rail Corporation.

8. SPECIAL PROVISIONS.

- a. Persons who receive packages covered by this exemption may re-offer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such re-offering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: None as a condition of this exemption

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
- Registration required by 49 CFR 107.601 et seq., when applicable.

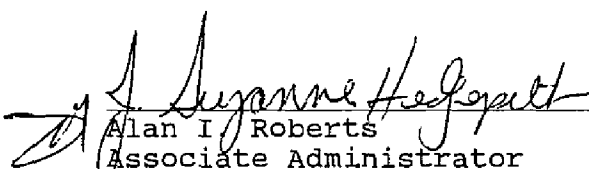
12. REPORTING REQUIREMENTS.

- a. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

- b. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA